**IN THE NATIONAL COMPANY LAW TRIBUNAL,**
**SINGLE BENCH, CHENNAI**

**CA/388/CAA/2018**

Under Sections 230 to 232 of the Companies Act, 2013

In the matter of Scheme of Amalgamation

Between

**M/s. Twinshield Consultants Private Limited**
(Transferor Company)

With

**M/s. AMI Holdings Private Limited**
(Transferee Company)

*Order delivered on 4th April, 2019*

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**CH. MOHD SHARIEF TARIQ, MEMBER (JUDICIAL)**

For Applicant(s): *B. Chandra, PCS*

**ORDER**

Per: CH. MOHD SHARIEF TARIQ, MEMBER (JUDICIAL)

1. Under consideration is Application No. CA/388/CAA/2018 filed under Sections 230 to 232 of the Companies Act, 2013. The prayer made is to dispense with convening, holding and conducting of the meeting of Equity / Preference Shareholders and

unsecured Creditors in relation to the Transferor and Transferee Company.

2. **M/s. Twinshield Consultants Private Limited:-**

i. The Transferor Company viz., M/s. Twinshield Consultants Private Limited, had 2 Equity shareholders. Subsequently Equity Share capital was fully purchased by the "M/s. AMI Holdings Private Limited", (the Transferee Company herein) and is held along with a nominee. The Redeemable Cumulative Preference Shares are held by M/s. Trinity Autopoints Limited. The consent affidavits given by the Equity Shareholders are placed at pages 116-119 of the typed set and that of the Preference Shareholder is placed at pages 120 – 122 of the typed set, filed with the Application, wherein it has been deposed that they do support the Scheme of Amalgamation and consent to dispense with convening, holding and conducting the meeting of Equity / Preference Shareholders. Therefore, the meeting of the Equity / Preference

Shareholders of the Transferor Company is allowed to be dispensed with.

ii. There are no Secured Creditors in relation to the Transferor Company. The Certificate issued by the Chartered Accountants to this effect is placed at page 112 of the typed set filed with the Application.

iii. There is only 1 (One) Unsecured Creditor in relation to the Transferor Company. The certificate issued by the Chartered Accountants to this effect is placed at page 112 of the typed set filed with the Application. The consent affidavit given by the sole Unsecured creditor is placed at pages 113-114 of the typed set filed with the Application, wherein it has been deposed that he does support the Scheme of Amalgamation and consent to dispense with convening, holding and conducting the meeting of unsecured creditor. Therefore, the meeting of the Unsecured Creditor of the Transferor Company is allowed to be dispensed with under clause (9) of the Section 230 of the Companies Act, 2013.

3. **M/s. AMI Holding Private Limited:-**

i. The Transferee Company viz., M/s. AMI Holding Private Limited, has 5 (Five) Equity Shareholders. The list of Equity Shareholders is placed at page 10 of the typed set filed with the Application. The consent affidavits given by the Equity Shareholders are placed at pages 123-132 of the typed set filed with the Application, wherein it has been deposed that they do support the Scheme and consent to dispense with convening, holding and conducting the meeting of Equity Shareholders. Therefore, the meeting of the Equity Shareholders of the Transferee Company is allowed to be dispensed with.

ii. There are no Secured Creditors in relation to the Transferee Company. The Certificate issued by the Chartered Accountants to this effect is placed at page 57 of the typed set filed with the Application.

iii. There is only 1 (One) Unsecured Creditor in relation to the Transferee Company. The certificate

issued by the Chartered Accountants to this effect is placed at page 57 of the typed set filed with the Application. The consent affidavit given by the Unsecured Creditor is placed at pages 58-59 of the typed set filed with the Application, wherein it has been deposed that he does support the Scheme and consent to dispense with convening, holding and conducting the meeting of Unsecured Creditor. Therefore, the meeting of the Unsecured Creditor of the Transferee Company is allowed to be dispensed with under clause (9) of the Section 230 of the Companies Act, 2013.

4. The Registry is directed to issue notice to the concerned Regional Director, Ministry of Corporate Affairs, RoC concerned and Income Tax Authorities including the Assessing Officer of the I.T. Circle and OL in relation to the Transferor Company with the direction to appoint Chartered Accountants on his own for filing report. Since the Applicant Companies are Private Limited, there is no requirement to issue notice

to SEBI or other stock exchanges and CCI or other sectoral regulators. In case, the statutory authorities to whom the notice is issued are desirous of making any objection/representation, they may do so within 30 days from the date of receipt of the notice. In case no objection/representation is made, it shall be presumed that they/any of them have/has no objection/representation to make.

5. The Applicant Companies are directed to issue private notice to the said authorities/regulators by way of speed post/hand delivery, having not less than 30 + 2 days before the date fixed for filing the Company petition(s). The proof of sending and effecting the service of notice upon them along with the newspaper publication shall be submitted with supporting affidavit to this Bench along with Company Petition.

6. The Applicant Companies are directed to effect publication separately in the newspapers one in

English "Trinity Mirror" (Tamilnadu Edition) and another in vernacular "Makkal Kural" (Tamilnadu Edition) provided the said newspapers have wide circulation in the State of Tamilnadu, having not less than 30 + 2 days before filing the Company Petition(s). The Applicant Companies are further directed to upload the notice on their websites and display the notice on the notice board at its Registered Office. The Registry is also directed to display the notice, on the notice board of this Bench.

7. Accordingly, the Application is **allowed**. The Applicant Companies are directed to present the Petition on or before 03.06.2019.

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**[CH. MOHD. SHARIEF TARIQ]**
MEMBER (JUDICIAL)

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